

TEAMING AGREEMENT

The Parties intend to work together on the RFP and jointly submit a Bid to Client.

The Parties hereby agree to be bound by the provisions contained in this Information Schedule and the attached Terms and Conditions (together the "**Agreement**").

Information Schedule:

Commencement Date	01 July 2024
Request for Proposal	Description / Name: PROVISION OF CLOUD-BASED BACK-UP AND DISASTER RECOVERY (DR) SERVICES FOR A PERIOD OF 36 MONTHS RFP Number: OPFA/ICT/042024
Client	Full Name: OFFICE OF THE PENSION FUND ADJUDICATOR (OPFA)
Soma-Solutions	Full Name: Soma-Solutions Registration Number: Physical Address: Riversands Incubation Hub, Suite R11, 90 Block 2, Riversands Fax: +27 72 117 8711 Attention: Marilyn White Radebe
Soma-Solutions Scope of Work:	Soma Solutions will be responsible for 60% effort of the delivery of the project: • Project Management • Service Level Management • Review and Update of Policies • Support and Implement Disaster Recovery and Back-Up Activities with Sautech • Scope, Roles & Responsibility is subject to change and or refined subject to mutual agreement by both parties.
Sub-Contractor:	Full Name: Sautech Pty Ltd Registration Number: 2003/006814/07 VAT No.: 4240211963 Physical Address: 34 Stokroos Avenue, Breaunanda, Krugersdorp, 1739 Tel: 011 768 1790

	Email address: charlaine@sautech.net
Sub-Contractor's Scope of Work:	Sautech will be responsible for 40% effort of the delivery of the project: • Lead Support and Implementation of Disaster Recovery and Back-Up Activities with Soma-Solutions Scope, Roles & Responsibility is subject to change and or refined subject to mutual agreement by both parties.

Signatures

For: Soma-Solutions Duly Authorised Name of signatory in block letters	For: Sub-Contractor  CHARLAINE MERNEWICK Name of signatory in block letters
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Terms and Conditions:

1. Definitions and Interpretation

1.1 In this Agreement the below terms shall have the following meanings assigned to them:

1.1.1 **"Agreement"** means these Terms and Conditions and the Information Schedule to which these Terms and Conditions are attached;

1.1.2 **"Bid"** means all tenders, bids and proposals (including revisions thereto) submitted or to be submitted jointly by the Parties in response to the RFP and/or in consequence of the RFP;

1.1.3 **"Commencement Date"** means the date set out in the Information Schedule;

1.1.4 **"Confidential Information"** means any information, in whatever form, which by its nature or content is identifiable as confidential and/or proprietary to the Party disclosing such information ("**Disclosing Party**") and/or any third party in connection with or arising out of this Agreement ("**Receiving Party**");

1.1.5 **"Client"** means the party issuing the RFP described in the Information Schedule;

1.1.6 **"Soma-Solutions"** means Soma-Solutions, as further described in the Information Schedule;

1.1.7 **"Intellectual Property Rights"** means all intellectual property and rights in respect thereof of whatsoever nature, including corporate identification, trademarks, trade names, service marks, designs, brand names, logos, slogans, emblems, copyright, patents, inventions, know-how, improvements, processes, get-ups, specialised technical information or expertise (whether registered or not);

1.1.8 **"Prime Contract"** means the contract to be entered into between Client and Soma-Solutions as a result of Client's award to Soma-Solutions in respect of the Bid;

1.1.9 **"Parties"** means Soma-Solutions and Sub-Contractor and **"Party"** means either one of them as the context may require;

1.1.10 **"RFP"** means the request for proposal or invitation to submit a proposal (whether provided as part of a competitive bidding process or not) issued

by Client for the provision of services and/or products described in the Information Schedule;

1.1.11 "**Scope of Work**" means the high-level description of the services and/or products to be provided by each of the Parties for the purposes of the Bid and the Prime Contract as further described in the Information Schedule;

1.1.12 "**Sub-Contract**" means the agreement to be concluded between Soma-Solutions and Sub-Contractor governing their relationship in respect of the provision of services and/or products in terms of the Scope of Work; and

1.1.13 "**Sub-Contractor**" means the Party identified as such in the Information Schedule.

1.2 In this Agreement, unless the context clearly indicates a contrary intention:

1.2.1 the rule of construction that, in the event of ambiguity, the contract shall be interpreted against the party responsible for the drafting thereof, shall not apply in the interpretation of this Agreement;

1.2.2 the expression "including" and its derivatives, such as "include" and "includes", means including, but without limitation;

1.2.3 the expiration or termination of this Agreement shall not affect the provisions of this Agreement which of necessity must continue to have effect after such expiration or termination, notwithstanding that the clauses themselves do not expressly provide for this;

1.2.4 words importing the singular shall include the plural, and vice versa; a reference to any one gender shall include the other genders; a reference to a natural person shall include created entities (corporate or unincorporate) and vice versa; and cognate expressions shall bear corresponding meanings;

1.2.5 words and phrases defined in any clauses of this Agreement, the annexes and schedules shall for the purpose of that clause bear the meaning therein assigned thereto;

1.2.6 words "clause" or "clauses" refer to clauses of this Agreement; and

1.2.7 annexes and/or schedules are deemed to be incorporated herein and form an integral part hereof.

2. **Purpose**

2.1 This Agreement serves to govern the relationship between the Parties in each of the following three stages: preparation of the Bid; Prime Contract negotiations; and Sub-Contract negotiations.

2.2 The Parties hereto intend to submit the Bid, with Soma-Solutions as the prime contractor and Sub-Contractor as a sub-contractor to Soma-Solutions.

3. **Duration**

3.1 This Agreement shall commence on the Commencement Date and shall continue in effect until terminated upon the earliest of the following occurring:

3.1.1 the Sub-Contract is agreed upon and signed by the Parties;

3.1.2 an announcement by Client that an award will not be made based on the RFP, the RFP has been cancelled, or that the Bid has not been accepted;

3.1.3 upon the award of a contract in respect of the RFP to a person other than Soma-Solutions; or

3.1.4 an announcement by Client that the Bid has been awarded to Soma-Solutions, subject to the Sub-Contractor being excluded from the Scope of Work under the Prime Contract; or

3.1.5 2 (two) years after the Commencement Date unless otherwise extended by agreement of the Parties.

3.2 Any provision of this Agreement that contemplates performance or observance subsequent to any termination or expiration of this Agreement shall survive any termination or expiration of this Agreement and continue in full force and effect.

4. **Proposal**

4.1 The Parties agree to work together to prepare a Bid and to use all reasonable endeavours both before and after submission of the Bid to facilitate the selection of Soma-Solutions as the prime contractor and Sub-Contractor as a sub-contractor to Soma-Solutions, in accordance with the allocation of the principal tasks and work share to be agreed upon from time to time by the Parties.

4.2 For the purposes of the analysis of the RFP and the preparation of the Bid, the Parties will circulate all proposed material pertinent to the portion of the Scope of Work to be performed by them. The Parties will supply qualified personnel who will

co-operate together in preparing and delivering the Bid. The information to be supplied by each of the Parties shall be accurate and complete.

- 4.3 Each Party shall in the Bid, in all relevant discussions with respect thereto and in any negotiations of the Prime Contract, identify the other Party as its team member and joint provider of services and/or products in terms of the Scope of Work.
- 4.4 Each Party shall at the special request and cost of the other Party, do and execute or procure to be done and executed all acts, documents and things reasonably necessary to give effect to the meaning and intention of this Agreement.
- 4.5 Each Party shall ensure availability of management, legal, human resources and technical personnel to assist the other Party in the preparation of the Bid and in any discussions and negotiations with Client for the purpose of obtaining the award of the Prime Contract.
- 4.6 Sub-Contractor agrees that it shall work exclusively with Soma-Solutions (and with such other parties as may be proposed by Soma-Solutions) in respect of the services and/or products to be provided by Sub-Contractor, as set out in the Scope of Work. Sub-Contractor warrants that it has not and shall not on its own behalf enter into any agreements or negotiations with third parties for the purpose of teaming, collaborating, advising or otherwise responding to the RFP or otherwise bidding for any resultant contract. Notwithstanding the above, Sub-Contractor shall be entitled, with the prior written consent of Soma-Solutions, to appoint such sub-contractors as may be required for purposes of providing its services and/or products.
- 4.7 Each Party shall bear its own respective costs, risks and liabilities incurred by it arising out of its obligations and efforts under this Agreement and during the periods up to an award of a Prime Contract and up to the conclusion of the Sub-Contract.
- 4.8 Soma-Solutions shall have overall responsibility for the preparation of the Bid in its final form, its submission to the Client by the closing date for the RFP, and subsequent negotiations with the Client.
- 4.9 The Parties each have designated in writing the individual(s) within their own organisation as their representative(s) responsible to direct performance of the Parties' necessary functions. Such representatives shall be responsible for effecting the requirements and responsibilities of the Parties under this Agreement.
- 4.10 Each Party warrants that it has full right, authority and capacity to enter into this Agreement.

5. **Prime Contract and Sub-Contract**

- 5.1 Sub-Contractor and Soma-Solutions shall each be solely responsible and liable for

the due, timeous and proper performance of all their respective obligations and undertakings referred to in the Scope of Work, which shall be incorporated in the Prime Contract.

- 5.2 Sub-Contractor undertakes to enter into Sub-Contract with Soma-Solutions, in respect of the portion of the Scope of Work to be provided by Sub-Contractor, incorporating terms and conditions (including service levels, obligations and duties imposed on Soma-Solutions) set out in the Bid and Prime Contract, provided that in the event of conflict, the Prime Contract shall take precedence.
- 5.3 Following the submission of the Bid and with the award of the Bid to Soma-Solutions, the Parties shall negotiate in good faith and conclude the Sub-Contract as soon as reasonably possible following the award or the conclusion of the Prime Contract.
- 5.4 Neither Party shall give to Client any commitment, guarantee or warranty which will result in any increased liability or responsibility of the other Party under the Prime Contract, unless otherwise agreed in writing by the Parties or agreed and incorporated in the Bid.

6. **COMMUNICATIONS WITH THE CUSTOMER**

- 6.1 The Parties shall each be entitled to contact the Client or its representatives and consultants concerning the Bid, provided that such contact by such Party shall be advised to the other Party to ensure co-ordination of efforts and understanding of commitments prior to such contact, wherever practical.
- 6.2 It is recognised that either of the Parties may be the recipient of inquiries or directions concerning the subject-matter of this Agreement. Therefore, any cogent communications invited by the Client, its representatives or consultants directly with any Party concerning any matter involving this Agreement shall be permitted provided that the other Party is given prior notification thereof by such Party, wherever practical.
- 6.3 In the event that either of the Parties should be requested or is presented the opportunity to make presentations, whether orally or by written communications, to the Client, its representatives or consultants, the content of the presentations thereof shall be made immediately known to the other Party who will support such presentations and shall be present thereat if it relates to that portion of the Scope of Work for which it is responsible.

7. **Intellectual Property Rights**

- 7.1 All Intellectual Property Rights owned, created, enhanced or developed by Soma-Solutions shall remain the sole and exclusive property of Soma-Solutions and all

Intellectual Property Rights owned, created, enhanced or developed by Sub-Contractor shall remain the sole and exclusive property of Sub-Contractor.

- 7.2 Soma-Solutions shall retain the copyright in and to the Bid and shall be the sole and exclusive owner of all and any Intellectual Property Rights created in such Bid.

8. **Confidentiality**

- 8.1 The Receiving Party shall not use the Confidential Information for any purpose whatsoever other than strictly in relation to this Agreement and shall not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party, provided that no consent shall be required for disclosure of Confidential Information to its professional advisors, employees and sub-contractors to whom disclosure is reasonably necessary and provided that such persons are bound by general confidentiality undertakings no less stringent than those contained in this Agreement.

- 8.2 The Receiving Party agrees to protect Confidential Information by using the same standard of care used to safeguard its own information of a confidential and/or proprietary nature (but no less than a reasonable standard of care) and taking all reasonable steps to prevent any unauthorised disclosure of such Confidential Information.

- 8.3 Receiving Party shall, at Disclosing Party's option, destroy (including extracting from any computer or similar devices) or return the Confidential Information on written demand by Disclosing Party.

- 8.4 Confidential Information does not include information to the extent that such information:

8.4.1 is known to or in the possession of the Receiving Party prior to disclosure thereof by the Disclosing Party;

8.4.2 is or becomes publicly known, other than pursuant to a breach of its confidentiality undertakings under this Agreement by the Receiving Party;

8.4.3 is acquired or developed independently of the Disclosing Party by the Receiving Party other than pursuant to a breach of its confidentiality undertakings under this Agreement by the Receiving Party.

- 8.5 Where the Receiving Party is entitled to disclose the Disclosing Party's Confidential Information to satisfy the order of a court of competent jurisdiction or to comply with the provisions of any applicable law in force from time to time, the Receiving Party shall, unless prohibited from doing so, advise the Disclosing Party prior to

such disclosure to enable the Disclosing Party to take whatever steps it deems necessary to protect its interest in this regard.

- 8.6 No Party shall make any public announcement, issue any press release or disclose the content of this Agreement without first receiving the written consent of the other Party. Notwithstanding the above, the content of this Agreement may be made known to appropriate Client representatives by either Party, if requested by Client.

9. **Code of Conduct**

- 9.1 Subcontractor represents and warrants that, in connection with this Agreement, the Parties and their holding companies, subsidiaries, affiliates, agents and their respective directors, officers and employees ("**Related Parties**") shall:

9.1.1 comply with all applicable anti-bribery and corruption laws and regulations; and

9.1.2 not, directly or indirectly, offer, give or agree to give any person, or solicit, accept or agree to accept from any person gratification (including loans, gifts, donations, status, privilege or anything else of value) in order to act in a dishonest, biased or any other improper manner in carrying out any powers, duties or functions that amounts to the abuse of a position of authority or any other unauthorised or improper inducement of a person to do or not to do anything.

- 9.2 Sub-Contractor represents and warrants that:

9.2.1 neither it nor its Related Parties have:

9.2.1.1 been convicted of any offence involving bribery or corruption;

9.2.1.2 been or are the subject of any investigation or inquiry by any governmental, administrative or regulatory authority regarding any offence or alleged offence involving bribery or corruption;

9.2.1.3 directly or indirectly offered, given or agreed to give any person, or solicited, accepted or agreed to accept gratification (including, without limitation, loans, gifts, donations, status, privilege or anything else of value) in order to act in a dishonest, biased or any other improper manner in carrying out any powers, duties or functions that amounts to the abuse of a position of authority or any other unauthorised or improper inducement of a person to do or not to do anything;

9.2.1.4 improperly influenced any person to:

- 9.2.1.4.1 award a tender to a person (including, but without limitation, Sub-Contractor) for provision of services to any public or private entity;
 - 9.2.1.4.2 in the absence of a tender process, promote the procurement of a contract with any public or private entity by a person (including, but without limitation, Sub-Contractor);
 - 9.2.1.4.3 withdraw a tender awarded to another public or private entity; or
 - 9.2.1.4.4 fix the price, consideration or other monies stipulated or otherwise provided for in any such contract referred above.
- 9.2.2 it has received, read and understood the Third Party Anti-Bribery and Corruption Policy which can be found at [here](#) and the Code of Business Conduct and Ethics which can be found at [here](#) (the "Policies") and shall observe and comply with the provisions of the Policies, which Policies shall be initialled by the Sub-Contractor;
- 9.2.3 it shall have in place, maintain and enforce its own internal policies and procedures which are designed to ensure compliance with this clause, the Policies and all applicable anti-bribery and corruption laws and regulations;
- 9.2.4 it shall immediately report, in writing, to Soma-Solutions any actual or suspected breach of this clause or the Policies and/or any violation of any anti-bribery and corruption laws and regulations;
- 9.2.5 it shall co-operate and provide all reasonable assistance, documentation, records and such other information to Soma-Solutions in order to enable it to investigate any actual or suspected breach of this clause or to verify Sub-Contractor's compliance with this clause 9.
- 9.3 Soma-Solutions shall have the right to terminate this Agreement with immediate effect:
 - 9.3.1 if it suspects that Sub-Contractor or any of the Related Parties has breached any of the provisions set out in this clause or the Policies and/or violated any anti-bribery and corruption laws and regulations; or
 - 9.3.2 where Sub-Contractor or any of the Related Parties is blacklisted or identified by any governmental, administrative or regulatory authority as

a person with whom trade or financial dealings and transactions are prohibited or restricted.

- 9.4 In the event of any losses being suffered by Soma-Solutions or the Soma-Solutions Group arising as a result the termination of this Agreement in accordance with clause 9.3, or breach of this clause by Sub-Contractor or any of the Related Parties, Sub-Contractor hereby indemnifies Soma-Solutions and the Soma-Solutions Group against all such losses, liabilities, damages, costs (including reasonable legal costs and disbursements) and expenses incurred.
- 9.5 Sub-Contractor agrees and undertakes to declare to Soma-Solutions any family, business and/or social relationship (whether arising as a result of a financial interest or investment or other business engagements) that exists between an owner, member, director, partner or shareholder of Sub-Contractor and an employee or board member of the Client that might represent a conflict of interest. A conflict of interest arises when such family, business and/or social relationship could unfairly advantage Sub-Contractor in any procurement or tender evaluation and adjudication process.
- 9.6 Sub-Contractor agrees to procure that all Related Parties comply with this clause 9.

10. **B-BBEE WARRANTIES**

- 10.1 Sub-Contractor represents and warrants that it will, at all times during the term of this Agreement, have, maintain and implement a suitable black economic empowerment policy ("BEE policy"), including but not limited to its current and projected percentage black ownership and percentage black management ("BEE status"). The BEE policy and BEE status will at a minimum comply with the requirements of the empowerment charters and legislation applicable to the Sub-Contractor ("the minimum criteria"). Soma-Solutions shall be entitled to audit the Sub-Contractor in order to ensure compliance by Sub-Contractor with its BEE policy and the minimum criteria. Sub-Contractor represents and warrants that all information furnished to Soma-Solutions regarding its BEE policy or BEE status is true and correct.
- 10.2 Should the Sub-Contractor's BEE status negatively change, or should the Sub-Contractor fail to achieve the targets specified in its BEE policy, or should Sub-Contractor's BEE status fall below the minimum standards specified in its BEE policy or in the minimum criteria (whichever are the higher), or should Sub-Contractor fail to adhere to the requirements of this clause 9 in any way, sub-contractor shall be obliged to inform Soma-Solutions thereof in writing within 14 (fourteen) days of such event. Sub-Contractor shall simultaneously with such notice provide Soma-Solutions with a proposal for the rectification of the unfavourable situation arising

as a result thereof ("the proposal"). Failure on the part of Sub-Contractor to comply with this clause 10 shall entitle Soma-Solutions to terminate this Agreement with immediate effect and enforce such other rights as it may have in law arising out of such breach of contract.

- 10.3 Thereafter, should Sub-Contractor fail to successfully implement the proposal (including any changes required by Soma-Solutions in its reasonable discretion), Soma-Solutions shall be entitled to terminate this Agreement with immediate effect and enforce such other rights as it may have in law arising out of such.

11. **Disputes**

- 11.1 Should any dispute arise between the Parties concerning this Agreement ("**Dispute**"), the Parties shall try to resolve the dispute by negotiation.
- 11.2 Should the Parties be unable to resolve the Dispute by negotiation then such Dispute shall be finally resolved by arbitration in accordance with the Arbitration Act 42 of 1965 (as amended).
- 11.3 The arbitration shall be held in Johannesburg and the proceedings conducted in English.
- 11.4 The Parties shall agree on the appointment of a single arbitrator. If such appointment is not agreed to within 7 (seven) days after receipt of written notice from a Party requesting such agreement, either Party may request that the President of the Law Society of the Northern Provinces (or any successor to such society) make the necessary appointment.
- 11.5 Notwithstanding anything to the contrary anywhere else in this Agreement, nothing in this clause 11 shall preclude any Party from seeking interim relief on an urgent basis in any court having jurisdiction.
- 11.6 The Parties undertake to keep the arbitration, including the subject matter of the arbitration and the evidence heard during the arbitration, confidential.

12. **Notices**

- 12.1 The Parties choose the addresses set out in this Agreement for all letters of demand and the serving of any legal process.
- 12.2 A Party shall be entitled, from time to time by written notice to the other Party, to change its chosen physical address to any other physical address within the Republic of South Africa which is not a post office box or its fax number, provided that the change shall only become effective on the 7th (seventh) day from receipt of the notice by the addressee.

12.3 Notwithstanding anything to the contrary contained in this Agreement, a written notice or communication actually received by a Party shall be adequate written notice or communication to such Party.

13. **General**

13.1 This Agreement is not intended by the Parties to constitute or create a joint venture, partnership or formal business organisation of any kind, other than a teaming arrangement and the rights and obligations of the Parties shall be only those expressly set forth herein and as are agreed in writing between the Parties or incorporated by agreement in the Bid. Neither Party shall have authority to bind the other Party. The Parties shall remain as independent contractors at all times and neither Party shall act as the agent for the other. Nothing in this Agreement shall be construed as providing for the sharing of profits or losses arising out of the efforts of either or both of the Parties.

13.2 During the period that this Agreement is in effect and for a period of 12 (twelve) months after its termination for whatsoever reason, each Party agrees not to solicit for employment any technical or professional employees of the other Party assigned to work on the Bid, Scope of Work, Sub-Contract or resultant Prime Contract, without the prior written approval of the other Party. The Parties further agree to include a provision similar to the above in any resultant Sub Contract.

13.3 Neither Party shall be liable for any indirect, special, consequential damages or losses, or lost profits or revenue arising out of or in connection with this Agreement. Neither Party shall be liable for direct damages and/or loss except in respect of the breach by Sub-Contractor of the provisions of clause 4.6 and in respect of the breach by either Party of the provisions of clauses 7 and 8 and/or **Error! Reference source not found..** Notwithstanding the foregoing, each Party's liability to the other for any and all claims, losses or damages shall not exceed the amount of US\$5,000,000.00 (five million United States dollars) per claim. These limitation of liability shall apply regardless of the form of action, whether in contract, delict or otherwise and regardless of whether either Party has been advised as to the possibility of such claims, losses or damages.

13.4 This Agreement may not be ceded, delegated and/or assigned or otherwise transferred by either Party in whole or in part without the prior written consent of the other Party.

13.5 Neither Party shall be liable to the other Party for any delay or non-performance of its obligations under this Agreement arising from circumstances outside the reasonable control of such Party. The Party so delayed shall promptly notify the other Party in writing of the reason for the delay and the likely duration of the delay. The performance of the delayed Party's obligations, to the extent affected by the

- delay, shall be suspended during the period that the cause persists, provided that if performance is not resumed within 30 (thirty) days after such notice, either Party may by notice in writing to the other Party terminate this Agreement.
- 13.6 This Agreement constitutes the entire agreement between the Parties regarding the subject matter hereof and supersedes and replaces any and all previous understandings, commitments or agreements, oral or written, related to the RFP and Bid.
- 13.7 No amendment or variation of this Agreement (including this clause 13.7) shall be of any force or effect, unless in writing and signed by the duly authorised representatives of both Parties.
- 13.8 No waiver, indulgence, extension of time or abandonment by either Party of any of its rights in terms of this Agreement shall be binding on that Party, unless such waiver, indulgence, extension of time or abandonment is in writing and signed the duly authorised representative of the waiving Party.
- 13.9 If any provision of this Agreement shall be held void, illegal or unenforceable, or in conflict with any law of the state or local government having jurisdiction over this Agreement, such provision shall be severable and shall in no way affect or impair the validity or enforceability of the remaining provisions of this Agreement.
- 13.10 This Agreement shall be governed by and interpreted in accordance with the laws of the Republic of South Africa.
- 13.11 Each Party shall bear and pay its own costs of or incidental to the negotiation, drafting, preparation and execution of this Agreement.
- 13.12 This Agreement may be executed in counterparts, each of which shall be deemed to be an original and all of which shall constitute the same agreement.

